IN THE CIRCUIT COURT OF THE NINETEENTH JUDICIAL CIRCUIT
IN AND FOR INDIAN RIVER, MARTIN, OKEECHOBEE, AND ST. LUCIE COUNTIES,
STATE OF FLORIDA

AMENDED ADMINISTRATIVE ORDER 2025-06
(Supersedes Administrative Order 2022-03)

IN RE: MAGISTRATES AND HEARING OFFICERS

WHEREAS, the Nineteenth Judicial Circuit courts preside over matters arising in multiple divisions, including Family, Dependency, Civil, Probate, Guardianship, Delinquency, Traffic, and cases involving mental health and substance abuse under the Baker Act and Marchman Act; and

WHEREAS, the efficient and timely resolution of such matters serves the interests of justice and promotes the fair administration of the courts; and

WHEREAS, General Magistrates may be appointed pursuant to, inter alia:

- Civil proceedings (Florida Rule of Civil Procedure 1.490),
- Family proceedings (Florida Family Law Rule of Procedure 12.490),
- Child Support Enforcement when a party seeking support is not receiving services pursuant to Title IV-D of the Social Security Act (42 U.S.C. Sections 651 et seq.) ("Title IV-D") (Florida Family Law Rule of Procedure 12.491),
- Probate and guardianship matters (Florida Probate Rules 5.095 and 5.697),
- Dependency and delinquency proceedings (Florida Rules of Juvenile Procedure 8.257 and 8.625(h)),
- other matters as necessary based on applicable provisions of Florida Statutes, including Baker Act (394.467), Marchman Act (397.681), and Guardianship case reviews (744.369(2)); and

WHEREAS, Child Support Enforcement Hearing Officers may be appointed pursuant to Florida Family Law Rule of Procedure 12.491 and are authorized to conduct proceedings related to the establishment, enforcement, and modification of child support obligations when a party seeking support is receiving services pursuant to Title IV-D; and

WHEREAS, the Florida Supreme Court has authorized, by administrative order dated November 16, 1994, the use of Child Support Hearing Officers in this Circuit pursuant to Rule 12.491 (formerly Florida Rules of Civil Procedure 1.491); and

WHEREAS, sections 318.30–318.38, Florida Statutes, and Florida Rules of Traffic Court 6.630 authorize counties to participate in the Civil Traffic Infraction Hearing Officer Program, under which the Chief Judge may appoint traffic hearing officers to hear non-criminal traffic infractions; and

WHEREAS, the Chief Judge seeks to update, consolidate, and formalize the appointments of General Magistrates, Child Support Enforcement Hearing Officers, and Civil Traffic Infraction Hearing Officers serving within the Nineteenth Judicial Circuit.

NOW, THEREFORE, pursuant to the authority vested in the Chief Judge under Article V, section 2(d) of the Florida Constitution and in accordance with the Florida Rules of General Practice and Judicial Administration, the Florida Rules of Civil, Family, Juvenile, Probate, and Traffic Court, and the applicable Florida Statutes, it is hereby

ORDERED as follows:

1. **Appointments**:
   - **a.** Each person listed in Appendix A is hereby appointed as a General Magistrate for the Nineteenth Judicial Circuit under Fla. R. Civ. P. 1.490, Fla. Prob. R. 5.095 and 5.697, Fla. R. Juv. P. 8.257 and 8.625(h), Fla. Fam. L. R. P. 12.490, Fla. Fam. L. R. P. 12.491 in non-Title IV-D proceedings, sections 394.467, 397.681, and 744.369(2), Fla. Stat., and any other statutory or rule provision authorizing the appointment of a general magistrate or general master.
   - **b.** Each person listed in Appendix B is hereby appointed as a Child Support Enforcement Hearing Officer pursuant to Fla. Fam. L. R. P. 12.491 when a party seeking support is receiving services pursuant to Title IV-D.
   - **c.** Each person listed in Appendix C is hereby appointed as a Civil Traffic Infraction Hearing Officer pursuant to Fla. R. Traf. Ct. 6.630 and section 318.30, Fla. Stat.
   - **d.** The Court may amend Appendices A, B, and C from time to time as needed to appoint or remove general magistrates, child support enforcement hearing officers, and civil traffic infraction hearing officers without the need to amend this administrative order.

2. **Each General Magistrate shall**:
   - **a.** Serve at the pleasure of the judges of this circuit and are generally appointed through this administrative order. In individual cases, a separate order of appointment or referral shall be entered to designate the magistrate assigned to that matter. This structure is consistent with the authority granted under the applicable rules of court.
   - **b.** Be a member in good standing of The Florida Bar;
   - **c.** Be authorized to hear matters in civil, family, probate, guardianship, dependency, delinquency, and mental health divisions as designated by the Chief Judge;
   - **d.** Have the authority to:
     - i. Conduct hearings;
     - ii. Take evidence;
     - iii. Administer oaths;
     - iv. Issue reports and recommendations;

v. Require the production of documents;
vi. Accept voluntary agreements and stipulations;
vii. Recommend findings of fact and conclusions of law;
viii. File reports and recommended orders with the referring judge for approval within a reasonable time from the hearing date;
ix. Serve copies of the recommended order on all parties within a reasonable time from the date of the hearing;
x. Be subject to motions to vacate or exceptions as provided by the applicable Florida Rules of Civil, Family, or Juvenile Procedure;
xi. Ensure compliance with time standards for post-hearing review as monitored by the Chief Judge or designee;

e. Not enter final orders except as permitted by law or administrative order;

f. Conduct hearings that must be recorded by a court reporter or approved electronic means, as required by the applicable rules of procedure;

g. Ensure that the parties are advised of:
i. Their right to file written objections to the referral (where applicable), and
ii. Their right to file exceptions to the recommended order;

h. Only proceed in the absence of a party if proper notice was provided and no objection or exception has been timely filed;

i. Refrain from presiding over jury trials or criminal matters not authorized by law;

j. Be assigned matters under:
i. Fla. R. Civ. P. 1.490 for general civil referrals;
ii. Fla. Fam. L. R. P. 12.490 for family law referrals;
iii. Fla. Fam. L. R. P. 12.491 for child support enforcement-related matters when a party is not receiving Title IV-D services in a proceeding;
iv. Fla. Prob. R. 5.095 and 5.697 for guardianship monitoring and emergency relief;
v. Fla. R. Juv. P. 8.257 and 8.625(h) for dependency and delinquency proceedings, subject to the limitations in those rules;
vi. § 394.467, Fla. Stat., for Baker Act proceedings;
vii. § 397.681, Fla. Stat., for Marchman Act proceedings;
viii. § 744.369(2), Fla. Stat., for guardianship file reviews and orders to show cause;

k. Refrain from presiding over cases involving involuntary placement under Chapter 394 or 397 unless properly referred and subject to statutory safeguards;

l. Conduct all proceedings in accordance with the applicable Florida Rules of Civil, Family, Juvenile, and Probate Procedure, and with all relevant Florida Statutes;

m. Be subject to the Code of Judicial Conduct in the same manner as a judge;

n. Perform any and all additional duties and obligations as may be authorized or required by applicable statute, rule, or administrative order.

3. **Each Child Support Enforcement Hearing Officer shall**:
   - **a.** Be a member in good standing of The Florida Bar, unless otherwise waived by the Chief Justice;
   - **b.** Serve at the pleasure of the Chief Judge and a majority of the circuit judges of the circuit;
   - **c.** Be appointed by the Chief Judge in the number deemed necessary to timely adjudicate Title IV-D and other support matters;
   - **d.** Have the authority to:
     i. Issue process;
     ii. Administer oaths;
     iii. Require the production of documents;
     iv. Conduct hearings for the establishment, enforcement, or modification of child support, and for the enforcement of related arrearage obligations;
     v. Accept voluntary acknowledgments of paternity and stipulated agreements regarding child support;
     vi. Establish a hearing schedule and provide proper notice to all parties;
     vii. Take testimony and create a formal hearing record in accordance with the Fla. R. Gen. Prac. & Jud. Admin. 2.535(h);
     viii. Issue recommended orders approving agreed-upon parenting plans in Title IV-D cases when both parties are present, in agreement, and the arrangement is in the child's best interest;
     ix. Evaluate the evidence and submit a recommended order to the court containing findings of fact;
   - **e.** Not hear contested paternity cases;
   - **f.** Promptly submit a recommended order to the court for review. The presiding judge shall enter the order unless good cause exists to amend, conduct further proceedings, or return the matter to the hearing officer;
   - **g.** File and serve copies of the recommended order on all parties within a reasonable time from the date of the hearing;
   - **h.** Be subject to a motion to vacate by any party within 15 days of the entry of the court's order and a cross-motion to vacate within 5 days, as provided in Fla. Fam. L.R.P. 12.491(f);
   - **i.** Have all motions to vacate heard within 10 days of a hearing request, absent good cause for delay;
   - **j.** Acknowledge that any party may seek modification of the support order at any time;
   - **k.** Ensure the record for any review includes all required transcripts, depositions, and exhibits. The party seeking review shall initially bear the cost of the transcript, subject to equitable allocation. If additional portions are designated by another party, that party shall bear the corresponding initial expense.
   - **l.** Perform any and all additional duties and obligations as may be authorized or required by applicable statute, rule, or administrative order.

4. **Procedures for Motions to Vacate**
   a. Motions to Vacate shall be governed by Fla. Fam. L. R. P. 12.490 and Fla. Fam. L. R. P. 12.491.
   b. Exceptions filed in civil proceedings shall be governed by Fla. R. Civ. P. 1.490.
   c. Exceptions filed in juvenile proceedings shall be governed by Fla. R. Juv. P. 8.257.
   d. Should the moving party fail to provide the record and transcript for the Court's review not less than 48 hours before the hearing on the Motion to Vacate or the hearing on Exceptions, without requesting an extension of time, the Motion to Vacate or Exceptions may be deemed abandoned and result in a denial of the Motion to Vacate or sustaining of the Exceptions.

5. **Automatic Referral to a Child Support Enforcement Hearing Officer**
   a. Upon the filing of any action where the Florida Department of Revenue is a party and the sole issue is the establishment, enforcement, or modification of child support, the action shall be automatically referred to the appropriate Child Support Enforcement Hearing Officer.
   b. No objections to a referral to a Child Support Enforcement Hearing Officer pursuant to this section will be entertained by the Court.
   c. Either party may set the action for hearing before the assigned Child Support Enforcement Hearing Officer.
   d. The Child Support Enforcement Hearing Officer will proceed with the hearings and preparation and filing of a recommended order pursuant to Fla. Fam. L. R. P. 12.491.

6. **Recommendation of Immediate Incarceration**
   On any recommendation for a finding of contempt by a General Magistrate or Child Support Enforcement Hearing Officer, in which a recommendation of immediate incarceration is made, the matter should be reviewed by the appropriate circuit judge assigned to the case.

7. **Each Civil Traffic Infraction Hearing Officer shall**:
   a. Be a member in good standing of The Florida Bar;
   b. Have completed the 40-hour standardized training program approved by the Florida Supreme Court, which includes instruction in ethics, courtroom control, traffic law and evidence, DMV procedures, participant perspectives, sentencing, jurisdiction, and mock proceedings, as well as direct court observation and mentored participation;
   c. Complete a minimum of 4 hours of continuing legal education annually, including at least 2 hours in ethics or professionalism and 2 hours in civil traffic infraction-related topics;
   d. Serve at the pleasure of the Chief Judge;
   e. Be subject to the Code of Judicial Conduct as provided in the application section of the Code;
   f. Not wear judicial robes while presiding;
   g. Not preside over any matter involving an accident resulting in injury or death, a criminal

traffic offense, or a civil infraction issued in conjunction with a criminal offense;

h. Not hold any person in contempt of court, but may file a verified motion for order of contempt in accordance with Fl. R. Crim. P. 3.840;

i. Refer any request for assignment to a county court judge if made by the defendant in writing within 30 days of the citation;

j. Not have the authority to certify questions to a district court of appeal.

k. Perform any and all additional duties and obligations as may be authorized or required by applicable statute, rule, or administrative order.

8. Effective Date and Vacation of Administrative Order 2022-03.

This administrative order is effective on October 20, 2025. Administrative Order 2022-03 is hereby vacated.

9. Recission of Prior Appointments

With respect to any General Magistrate, Child Support Enforcement Hearing Officer, or Civil Traffic Infraction Hearing Officer not expressly identified in this Administrative Order, all prior appointments are hereby rescinded. Furthermore, upon future removal of any individual's name from the Appendices attached hereto or which may subsequently be added hereto, the previously entered order of appointment for that individual shall likewise be deemed rescinded.

DONE AND ORDERED in at Ft. Pierce, St. Lucie County, Florida on the 20th day of October, 2025.

Charles A. Schwab
Chief Judge

Electronically Signed by Chief Judge Charles A. Schwab
4:48 pm, Oct 20, 2025

Copies to:
All Circuit and County Judges
Court Administration
Clerks of Court
General Magistrates and Hearing Officers

Appendix A – General Magistrates

Name
Lindsay Stroke
Kathryn Hill
Sean Lewis
Julie Oldehoff

Appendix B – Child Support Enforcement Hearing Officers

Name
Bruce Baillie
Kameisha Presley

Appendix C – Civil Traffic Infraction Hearing Officers

Name
Jeffrey Battista
Robert Goldman
Ryan Grazi
Jessica Sebag